# MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of March 2, 2026 (the "Effective Date") between Larkspur Systems, Inc., a Delaware corporation ("Provider"), and Brightwater Logistics LLC, an Oregon limited liability company ("Customer"). Provider and Customer agree as follows.

**1 Services**

Provider will make the Larkspur Route Intelligence platform (the "Service") available to Customer and its authorized users in accordance with this agreement and each order form signed by both parties. Provider may update the Service from time to time, provided that no update will materially reduce the functionality of the Service during a paid term.

**2 Term**

The initial term of this Agreement begins on the Effective Date and continues for twelve (12) months (the "Initial Term").

**3 Renewal**

After the Initial Term, this Agreement renews automatically for successive twelve (12) month terms unless either party gives writen notice of non-renewal at least sixty (60) days before the end of the then-current term.

**4.1 Fees**

Customer will pay Provider an annual subscription fee of $184,000 for the Service, invoiced annually in advance. Fees are stated in U.S. dollars and are exclusive of taxes.

**4.2 Payment Terms**

Customer shall pay each undisputed invoice within ninety (90) days of the invoice date. Customer must notify Provider of any disputed amount before the due date and pay the undisputed portion on time.

**4.3 Late Payment**

Overdue amounts accrue interest at the rate of 1.5% per month, or the highest rate permitted by law if lower, from the due date until paid.

**4.4 Fee Adjustments**

Provider may increase the fees for any renewal term by up to 5% over the fees for the preceding term by giving notice at least ninety (90) days before the renewal date.

**5 Service Levels**

Provider will maintain monthly availability of the Service of at least 99.9%. If Provider fails to meet this commitment in a calendar month, Customer will recieve a service credit equal to 5% of the monthly fee for each full hour of unavailability, up to a maximum of 10% of the monthly fee for that month. Service credits are Customer's sole remedy for unavailability.

**6 Customer Data**

Customer owns all data it submits to the Service ("Customer Data"). Provider will process Customer Data only to provide the Service. For thirty (30) days after termination or expiration, Provider will make Customer Data available for export, after which Provider will delete it.

**7 Intellectual Property**

Provider retains all right, title and interest in the Service, including all configurations, integrations and improvements developed in connection with this Agreement. Nothing in this Agreement transfers ownership of any intellectual property to Customer.

**8 Confidentiality**

Each party will protect the other party's confidential information using reasonable care and will use it only to perform this Agreement. These obligations continue for 3 years after termination or expiration of this Agreement.

**9 Limitation of Liability**

Except for a party's indemnification obligations, each party's total liability arising out of or related to this Agreement will not exceed the fees paid by Customer under this Agreement in the twelve (12) months before the event giving rise to the claim. Neither party will be liable for indirect, incidental or consequential damages.

**10 Indemnification**

Provider will defend Customer against any third-party claim that the Service infringes a patent, copyright or trademark, and will pay damages finally awarded. Customer will defend Provider against any third-party claim arising from Customer Data.

**11 Termination**

Either party may terminate this Agreement for material breach if the breach is not cured within 30 days after written notice. Neither party may terminate this Agreement for convenience during the Initial Term or any renewal term.

**12 Audit**

No more than once per year, and on at least thirty (30) days' written notice, Customer may review Provider's then-current security reports. Each audit will be conducted during business hours and at Customer's expense.

**13 Assignment**

Neither party may assign this Agreement without the prior written consent of the other party, except to a successor in a merger or sale of substantially all of its assets. Any seperate attempt to assign is void.

**14 Notices**

Notices must be in writing and sent to the addresses below. Provider: Larkspur Systems, Inc., 1200 Cascade Avenue, Suite 900, Wilmington, Delaware 19801. Customer: Brightwater Logistics LLC, 410 Quay Street, Suite 200, Portland, Oregon 97204. E-mail notice is effective when acknowledged.

**15 Governing Law**

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of laws rules. The parties submit to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware.

**16 General**

This Agreement, together with each order form, is the entire agreement between the parties and supersedes all prior discussions. Any amendment must be in writing and signed by both parties. If any provision is unenforceable, the remaining provisions stay in effect.

**Larkspur Systems, Inc.**
By: _____
Name: Dana Okafor
Title: VP, Deal Desk

**Brightwater Logistics LLC**
By: _____
Name: Priya Raman
Title: Head of Procurement